

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2024CUOE021511: KARINA VIERA vs UP REAL ESTATE HOLDING
CORPORATION, et al.**

09/23/2026 in Department 44

**Motion and Memorandum in Support of Motion for Preliminary Approval of Class Action
Settlement, Approval of Notice to Class Members and Related Materials, and Setting
Hearing for Final Approval of Settlement**

Tentative Ruling: Class Action & PAGA Preliminary Approval of Settlement

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 4:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Motion for Preliminary Approval of Class Action Settlement & Approval of PAGA Settlement (“Motion”)

Tentative Ruling:

The Court Conditionally GRANTS the Motion, subject to an justification by Defendant of why the settlement must be paid out over 24 months and the parties’ designation of a cy pres charity under Code of Civil Procedure section 384 or explanation of why sending uncashed checks to the office of Unclaimed Property Funds is more appropriate. If counsel can provide additional information concerning same, the Court will GRANT the motion, otherwise, the Court may CONTINUE the motion to allow Plaintiff to provide same. The Motion is otherwise preliminarily approved as follows:

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1. Summary of Proposed and Preliminarily Approved Monetary Terms.

Description	Proposed	Preliminarily Approved
Gross Settlement Amount	\$425,750	\$425,750
Less: Attorney Fees (not to exceed)	\$142,235	\$142,235
Less: Costs (not to exceed)	\$25,000	\$25,000
Less: Administrative Costs (not to exceed)	\$7,550	\$7,550
Less: PAGA Penalties	\$64,000	\$64,000
Less: Service Award	\$10,000	\$10,000
Net Settlement Before PAGA add-back	\$176,965	\$176,965
Plus PAGA Penalty to Aggrieved Employees (allocated per Lab. Code § 2699(m)) ¹	\$16,000	\$16,000
Net Settlement After PAGA add-back	\$192,965	\$192,965

2. Timely Service. The Motion was timely served on all parties, to include service of the Motion and settlement agreement on the LWDA. (Labor Code § 2699(s)(2); Code Civ. Proc. §§ 1005, 1010.6.)

3. Conformity with Rules of Court. The Rules of Court govern the length and format of law and motion papers, to include that no opening or responding memorandum may exceed 15 pages absent leave of court (See Cal. R. Ct., rule 3.1113(d).); the font must be at least 12 points (Cal. R. Ct., rule 2.104); conforming exhibits that are appropriately indexed, tabbed or bookmarked, and paginated (Cal. R. Ct., rules 2.256(b) and 3.1110(f).) Counsel's compliance with these rules greatly aids in the review of papers filed with the Court, and also avoids delay in the Court's issuance of a decision on the merits. Noncompliance with these rules may cause delay in approval, or the Court to disregard noncompliant materials. (See Code Civ. Proc. §§ 187 & 128; see also *Bozzi v. Nordstrom* (2010) 186 Cal.App.4th 755, 765 [trial court has broad discretion to refuse to consider papers that do not comply with rule 3.1300(d)].) Here, the memorandum in support of the motion is 21 pages long in excess of the limit allowed under CRC

¹ Effective for PAGA Notices filed before June 19, 2024, penalties recovered are allocated 75% (LWDA) / 25% (Aggrieved Employees). For PAGA Notices filed on or after June 19, 2024, penalties recovered are allocated 65% (LWDA) / 35% (Aggrieved Employees). (Labor Code § 2699(m).) Notice in this case was provided on March 5, 2024, which makes the applicable split 75%/25%.

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3.1113(d). The Court exercises its discretion to consider the papers, but admonishes counsel to file compliant papers in the future.

4. **Fairness of Settlement.** The Court has reviewed the motion, all supporting documents filed in support thereof, and finds that Plaintiff has met its burden to show that the non-reversionary settlement was obtained after an arm's-length negotiation, and is fair, adequate and reasonable except as noted below. (*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801 [adequacy and reasonableness factors include consideration of case strengths, risks, and posture; settlement amount; experience of counsel].) In addition, the Court has reviewed the terms of the PAGA settlement, and finds that the settlement is fair, reasonable, and adequate in view of PAGA's purposes except as noted below. (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal. App.5th 56, 77 disapproved on other grounds in *Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 664.) In addition, the Court finds that the allocation between class claims and PAGA claims is fair. (*Id.*) Further, the Court finds that the scope of the release contained in the settlement agreement is fairly tailored to those that were or could be asserted in the lawsuit based on the facts alleged in the complaint. (*Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538-39.) The parties indicate that the settlement will be paid by Defendant over a period of 24 months, but the papers do not justify this delayed payment. The Court will require Defendant to justify the delayed payment, and Plaintiff to explain why such a delay is not prejudicial to the Class and Aggrieved Employees.

5. **Conditional Class Certification.** The Court is satisfied that the proposed class should be certified for purposes of settlement as Plaintiff has met the requirements of Code of Civil Procedure, section 382 [ascertainability, numerosity, well-defined community of interest].

The class is defined as: All persons who worked at least one 3.5-hour shift as a non-exempt hourly employee of Defendants in the State of California from March 5, 2020 through August 15, 2025, inclusive.

Aggrieved Employees under PAGA are defined as: All persons who worked at least one 3.5-hour shift as a non-exempt hourly employee of Defendants in the State of California from March 5, 2023 through August 15, 2025, inclusive.

Plaintiff(s) have analyzed the range of liability, and have provided information regarding the number of class members/aggrieved employees together with the average payout per employee, as follows:

Estimated Number of Class Members:	363
Estimated Class Payment:	\$1,175.49

6. **Appointments.** The Court appoints plaintiff **Karina Viera** as the class representative, plaintiff's counsel **Eliot J. Siegal and Julian Burns of King & Siegal, LLP and Navid Barahmand of Barahmand Law Group** as class counsel, and **ILYM Group, Inc.** as the Settlement Administrator.

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7. **Notice to Class.** The Court is satisfied that the proposed class notice will adequately inform the class about the claims and satisfies the requirements of California Rules of Court, rule 3.766(d). [i.e., the terms of settlement; release of claims; anticipated distribution; amount of fees and costs requested by counsel, class representatives, and the Settlement Administrator; does not include commentary concerning the merits of the settlement; and explains the time limits for class members to object, opt out, and redeem payments.]

8. **Attorney Fee Award.** With respect to the request for attorneys' fees, the Court has independently scrutinized Plaintiff's request for a percentage fee to be paid from the common fund in the amount of **1/3 of the gross settlement amount, or \$142,235**. At this juncture, and reserving the Court's discretion to select the method of fee recovery that best serves the facts at final approval, the Court approves a percentage **fee recovery up to 1/3 of the common fund as reasonable**. (*Laffitte v. Robert Half Internat. Inc.* (2016) 1 Cal.5th 480, 503.) The Court will exercise its discretion to determine the reasonableness of the fee using a **25 percent benchmark**. Counsel must justify fees that exceed the Court's benchmark in connection with the final approval motion.

9. **Incentive Award.** Plaintiff in this case seek an incentive award of **\$10,000**. Here, the Court finds within its discretion that an award of up to \$10,000 but will require additional specific information from Plaintiff by way of her declaration from which the Court can assess Plaintiff's actual effort, risk, and contributions to the litigation, and is not disproportionate to plaintiff's expended effort. (*Cellphone Termination Fee Cases* (2010) 186 Cal.App.4th 1380, 1393–1395.) The generic declaration filed by Plaintiff is not sufficient to justify a \$10,000 enhancement award.

10. **Attorney Costs.** Costs are requested in an amount not to \$25,000. Subject to Plaintiff's substantiating such costs at final approval, the Court will approve costs up to the requested amount.

11. **Claims Administration Costs.** Costs are requested in an amount not to exceed \$7,550. Subject to Plaintiff's substantiating such costs at final approval, the Court will approve costs up to the requested amount.

12. **Cy Pres.** The Court requires the parties select a cy pres charity recipient in accordance with Code of Civil Procedure section 384, or provide an explanation why the State Controller's Unclaimed Property Fund is the more appropriate recipient for any unclaimed settlement funds in this case.

13. **Implementation Schedule and Proposed Order.** Plaintiffs are to include a detailed implementation schedule to accord with the timeline provided in the Amended Settlement Agreement in the revised proposed order. The proposed order must be a complete document and may not incorporate by reference any document not attached to it. The proposed order must have as an attachment the class notice.

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Subject to justification of the reason why the settlement funds must be paid over 24 months and the designation of an appropriate cy pres designee, the Court GRANTS the motion and will sign the proposed order **to be modified in accordance with this order / submitted in connection with the Motion.**

The Court hereby sets the hearing for final approval on Wednesday, April, 2028 at 1:30 p.m.

Plaintiff's counsel shall give notice.